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| 54 | <b><i>Neach vs. Pacheco</i></b> | <p>The motion by Defendant/Cross-Complainant Rodric Anthony Pacheco (“Pacheco”) and Defendant Pacheco &amp; Neach, PC (“Law Firm”) (collectively, “Defendants”) for an order granting Defendants’ motion for summary judgment or, in the alternative, motion for summary adjudication against Plaintiff Brian Neach (“Plaintiff”) is DENIED.</p> <p>As an initial matter, the Court notes Defendants did not identify the issues for summary adjudication in Defendants’ notice of motion or Separate Statement. (Notice of Motion; Separate Statement.)</p> <p>Defendants’ notice states Defendants are alternatively seeking summary adjudication but does not clearly identify the issues. Instead, Defendants’ notice raises four grounds in support of Defendants’ motion for summary judgment. Defendants’ Separate Statement rephrases these four grounds as four issues in support of Defendants’ motion for summary judgment and/or summary adjudication. “If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (Cal. Rules of Ct., Rule 3.1350(b).) Defendants did not comply with Rule 3.1350.</p> <p>The Court has discretion to deny a motion for summary judgment when the moving party fails</p> |
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|  | <p>to comply with the separate statement requirement. (<i>Truong v. Glasser</i> (2009) 181 Cal.App.4th 102, 118.)</p> <p>The statute governing the format of summary judgment moving papers is permissive, not mandatory. (<i>Brown v. El Dorado Union High School Dist.</i> (2022) 76 Cal.App.5th 1003, 1019.) Facts stated elsewhere, other than in the separate statement, need not be considered by the court. (<i>Id.</i>, citing <i>Fleet v. CBS, Inc.</i> (1996) 50 Cal.App.4th 1911, 1916, fn. 3.)</p> <p>Although Neach takes issue with the number of what Neach describes as immaterial facts in Defendants’ Separate Statement, Neach did not oppose the motion on the ground that the issues were not sufficiently identified in the notice of motion or that the issues were not repeated verbatim in the Separate Statement. The Court exercises its discretion to consider the merits of Defendants’ motion for summary adjudication despite this procedural deficiency.</p> <p><b><u>General legal authority</u></b></p> <p>In both summary judgment and summary adjudication proceedings, the pleadings determine the scope of the relevant issues. (<i>Port Medical Wellness, Inc. v. Connecticut General Life Ins. Co.</i> (2018) 24 Cal.App.5th 153, 169.) The standard governing motions for summary judgment and summary adjudication is settled. “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of</p> |
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